



Bill Number: S.B. 1751

Payne Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Removes the requirement that death by firing squad is the only method of death for a defendant who has murdered a law enforcement officer and knew or should have known the officer was acting in the officer's line of duty.
2. Makes technical and conforming changes.

PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1751
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-757, Arizona Revised Statutes, is amended to
3 read:

4 13-757. Method of infliction of sentence of death; identity
5 of executioners; license suspension

6 A. The penalty of death shall be inflicted by FIRING SQUAD, LETHAL
7 GAS OR an intravenous injection of a substance or substances in a lethal
8 quantity sufficient to cause death, under the supervision of the state
9 department of corrections.

10 B. A defendant who is sentenced to death ~~for an offense committed~~
11 ~~before November 23, 1992~~ shall choose ~~either~~ FIRING SQUAD, lethal
12 injection or lethal gas at least twenty days before the execution date.
13 ~~If the defendant fails to choose either lethal injection or lethal gas,~~
14 The penalty of death shall be inflicted by lethal injection IF THE
15 DEFENDANT FAILS TO CHOOSE A MANNER OF DEATH.

16 ~~[C. NOTWITHSTANDING ANY OTHER SECTION, DEATH BY FIRING SQUAD IS THE~~
17 ~~METHOD OF DEATH FOR A DEFENDANT WHO HAS MURDERED A LAW ENFORCEMENT OFFICER~~
18 ~~AND THE DEFENDANT KNEW OR SHOULD HAVE KNOWN THE LAW ENFORCEMENT OFFICER~~
19 ~~WAS ACTING IN THE LAW ENFORCEMENT OFFICER'S LINE OF DUTY.]~~

20 [C.] [D.] The identity of executioners and other persons who
21 participate or perform ancillary functions in an execution and any
22 information contained in records that would identify those persons is
23 confidential and is not subject to disclosure pursuant to title 39,
24 chapter 1, article 2.

25 [D.] [E.] If a person who participates or performs ancillary
26 functions in an execution is licensed by a board, the licensing board
27 shall not suspend or revoke the person's license as a result of the
28 person's participation in an execution.

Senate Amendments to S.B. 1751

1 Sec. 2. Conditional enactment

2 This act does not become effective unless the Constitution of
3 Arizona is amended by the vote of the people at the next general election
4 by the passage of Senate Concurrent Resolution [] [1049],
5 fifty-seventh legislature, second regular session, relating to capital
6 punishment.

7 Enroll and engross to conform

8 Amend title to conform

KEVIN PAYNE

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C: JV

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